

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Jean Paul Lozada	Team: Squad #03	CCRB Case #: 201410827	☐ Force ☒ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Friday, 10/17/2014 11:00 PM	Location of Incident: 24th Avenue and 94th Street	18 Mo. SOL 4/17/2016	Precinct: 115
Date/Time CV Reported Wed, 10/22/2014 4:17 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Wed, 10/22/2014 4:17 PM

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Sean Caruso	29249	950167	115 PCT
2. POM Bryan Vaughan	23065	951372	115 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Bryan Vaughan	Abuse: PO Bryan Vaughan threatened to issue summons to § 87(2)(b)	A . Unsubstantiated
B . POM Sean Caruso	Abuse: PO Sean Caruso threatened to issue summons to § 87(2)(b)	B . Unfounded
C . POM Bryan Vaughan	Discourtesy: PO Bryan Vaughan spoke rudely to § 87(2)(b)	C . Unsubstantiated

Case Summary

On October 17, 2014, at approximately 11:00 p.m., PO Bryan Vaughan and PO Sean Caruso responded to the scene of a motor vehicle accident at 94th Street and 24th Avenue in Queens, where § 87(2)(b) rear-ended § 87(2)(b)'s vehicle. While PO Vaughan and PO Caruso were talking to § 87(2)(b), § 87(2)(b) attempted to get their attention and said § 87(2)(b). § 87(2)(b) told her that she was checking her text messages when the accident occurred. PO Vaughan and PO Caruso allegedly told § 87(2)(b) "If you don't shut up, you're gonna get a summons," or, "Shut up before I give you a summons." (**Allegations A and B**) § 87(2)(b) asked them why they were going to issue her a summons and said she was the victim because her car was hit. PO Vaughan then allegedly told § 87(2)(b) to "shut the fuck up." (**Allegation C**) In her initial complaint, § 87(2)(b) stated that PO Vaughan said, "It doesn't matter who fucking called," and continued to speak to § 87(2)(b) (**Allegation C cont'd**). (Complaint encl. 3A-B, CCRB Statement encl. 4A-C)

Mediation, Civil and Criminal Conviction Histories

- Mediation was offered to § 87(2)(b) during her intake call and her CCRB interview. § 87(2)(b) rejected mediation both times § 87(2)(b).
- § 87(2)(b) has not filed a Notice of Claim with the City of New York as of December 12, 2014 with regard to the incident.(encl. 15F).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)] (encl. 11A-E).

Civilian and Officer CCRB Histories

- This is the second CCRB complaint filed by § 87(2)(b) (encl. 2A). § 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b).
- This is the first CCRB complaint against PO Vaughan during his three year tenure (encl. 1A)
- This is the first CCRB complaint against PO Caruso during his three year tenure (encl. 1B)

Findings and Recommendations

Allegation A – PO Bryan Vaughan threatened to issue a summons to § 87(2)(b)

Allegation C – PO Bryan Vaughan spoke discourteously to § 87(2)(b)

§ 87(2)(b) alleged that as she was trying to get the officers' attention, PO Vaughan told her, "If you don't shut up, you're gonna get a summons," or, "Shut up before I give you a summons," and ordered her to "shut the fuck up." In her initial complaint, § 87(2)(b) alleged that PO Vaughan said, "It doesn't matter who fucking called," and, "You better shut up, or I'll give you a summons." She stated that she was nervous and shaken up during the encounter and that she was not raising her voice and was not argumentative. § 87(2)(b) was standing in between her car and § 87(2)(b) car, which was parked behind hers, when these statements were made.

§ 87(2)(b) denied that the officers made the above statements and stated that they did not use any profanities or threaten to issue § 87(2)(b) a summons during this encounter. She stated that § 87(2)(b) was "very aggressive" and was speaking loudly but was not causing a disturbance and was standing in the street but was not blocking pedestrian traffic. § 87(2)(g)

(encl. 5A).

PO Vaughan and PO Caruso denied making the above statements and stated that they did not use any profanities or threaten to issue § 87(2)(b) a summons during this encounter. They noted that § 87(2)(b) could have been summonsed for disorderly conduct because she was raising her voice and blocking vehicular traffic, but they decided not to do so (encl. 6A-7E).

§ 87(2)(g)
It is therefore recommended that **Allegations A and C** be closed as **unsubstantiated**.

Allegation B – PO Sean Caruso threatened to issue a summons to § 87(2)(b)
§ 87(2)(b) alleged that as she was trying to get the officers' attention, PO Caruso also told her, "If you don't shut up, you're gonna get a summons," or, "Shut up before I give you a summons." She made no mention of PO Caruso threatening to issue her a summons in her initial complaint. She noted that PO Vaughan did most of the talking and that PO Caruso expressed his agreement with PO Vaughan. § 87(2)(b) denied that any officer made these statements or threatened to issue § 87(2)(b) a summons. PO Caruso denied making these statements and threatening to issue § 87(2)(b) a summons.

§ 87(2)(g)
It is therefore recommended that **Allegation B** be closed as **unfounded**.

Team: _____

Investigator: _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date